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QUESTION 8: Law Proposed by Initiative Petition

Prohibit Retail Sale of Adult Recreational Use Marijuana

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY ▶
As required by law, summaries are written by the State Attorney General.

The proposed law would change the type and amount of marijuana that may legally be possessed in Massachusetts by repealing the laws that legalize, regulate, and tax the retail sale of adult recreational use marijuana in Massachusetts. The proposed law would also permit persons 21 years of age and older to possess 1 ounce or less of marijuana including no more than 5 grams in the form of concentrate, and to gift or transfer to another person 21 years of age and older 1 ounce or less of marijuana including no more than 5 grams in the form of concentrate. The proposed law would also impose a civil penalty of $100 and forfeiture of the marijuana for the possession of marijuana between the weight of 1 and 2 ounces.

For persons 21 years of age and younger, the proposed law would make the possession of 2 ounces or less of marijuana a civil infraction subject to a $100 fine, forfeiture of the marijuana, completion of a drug awareness program and community service, and notification to their parents or legal guardian of the offense and penalties.

The proposed law would allow currently licensed adult recreational marijuana businesses to apply on an expedited basis to become a licensed medical marijuana dispensary and to sell their remaining inventory of adult recreational marijuana to medical marijuana dispensaries. The proposed law would retain the Cannabis Control Commission but modify its authority so it would regulate only the medical marijuana market.

The proposed law states that, if any of its parts were declared invalid, the other parts would stay in effect.

The proposed law would take effect on January 1, 2028.

WHAT YOUR VOTE WILL DO ▶
As required by law, the statements describing the effect of a "yes" or "no" vote are written jointly by the State Attorney General and the Secretary of the Commonwealth.

A YES VOTE would prohibit the legalization, regulation, and taxation of the retail sale of adult recreational use marijuana, and change the penalties for possession of marijuana.

A NO VOTE would make no change to the law relative to marijuana.

STATEMENT OF FISCAL CONSEQUENCES ▶
As required by law, statements of fiscal consequences are written by the Executive Office of Administration and Finance.

By repealing the laws that legalize and tax the retail sale of adult recreational use marijuana, the proposed law would reduce the amount that state and municipal governments receive from the taxation of those sales. In fiscal year 2025, taxation of the retail sale of adult recreational use marijuana raised approximately $280 million in state revenue and $50 million in local revenue. The state budget, which is supported by tax revenue, funds local aid for schools and municipal budgets.

ARGUMENTS ▶ As provided by law, the 150-word arguments are written by proponents and opponents of each question, and reflect their opinions. **The Commonwealth of Massachusetts does not endorse these arguments, and does not certify the truth or accuracy of any statement made in these arguments**. The names of the individuals and organizations who wrote each argument, and any written comments by others about each argument, are on file in the Office of the Secretary of the Commonwealth.

IN FAVOR:

MEDICAL AND MENTAL HEALTH PROFESSIONALS, PARENTS, AND BUSINESS OWNERS URGE **YES ON QUESTION 8**

- Question 8 would keep personal possession of marijuana legal, keep medical marijuana legal, and stop commercial marijuana stores
- Since commercial legalization, marijuana is now **the most common drug found in fatal car accidents** in Massachusetts
- **85% of marijuana users admit to driving after** and **over 50% drive within an hour or less**
- **Business owners have increased costs** from higher rates of **workplace injuries, increased healthcare costs, and higher turnover**
- For **every $1 gained in tax revenue, taxpayers spend $4.50** to mitigate the effects of legalization from societal expenses including increased healthcare, lost productivity, and crime (like DUI's)
- Modern concentrates and edibles have been linked to mental health conditions like **psychosis, severe anxiety, and schizophrenia**, particularly in young adults
- As a result of commercial marijuana, **ER visits in Massachusetts have drastically increased** for teenagers with psychiatric conditions

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AGAINST:

VOTE NO ON QUESTION 8

Question 8 would create serious public health and safety problems by repealing the rules and regulations that currently control the production and sale of marijuana in Massachusetts.

For ten years, Massachusetts has regulated marijuana, ensuring that products are tested for safety, packaged and labelled properly, and sold in licensed businesses to adults 21 and over.

Question 8 would undo that progress, returning marijuana to the illicit market where there are no safeguards in place. Law enforcement would be forced to waste time and resources on marijuana arrests instead of fighting serious crime. Historically, marijuana arrests have disproportionately impacted communities of color. Recriminalizing marijuana would make Massachusetts less safe.

Question 8 would shut down hundreds of small businesses, kill thousands of jobs, and eliminate billions of dollars in state tax revenue.

We must not go backwards on public health and safety.

Vote NO on Question 8.

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QUESTION 7: Majority Report (continued)

and infrastructure management, as well as statements from proponents, opponents, and members of the public. In addition, the Committee considered the potential legal, administrative, and fiscal implications of the proposal for both the Commonwealth and its municipalities.

The Initiative Petition seeks to permit, as a matter of right, the development of single-family homes on 5,000 square foot lots in areas determined to have adequate infrastructure, notwithstanding existing local zoning requirements. The stated objective of the petition is to increase housing production of small homes, expand the supply of buildable land, and improve housing affordability across the Commonwealth. Opponents question whether the goal of the petition would be realized given the specific language of the petition. For example, they noted ambiguity around size of structures, and a lack of implementation guidance (including how "adequate" infrastructure would be determined), which could result in uneven application across jurisdictions. The Committee recognizes the urgency of the Commonwealth's housing challenges and the importance of advancing policies that promote the development of diverse, accessible, and attainable homeownership opportunities.

While the Committee supports the overarching goal of expanding housing opportunities and acknowledges the need for bold and effective responses to the Commonwealth's housing shortage, based on the testimony received and the fact that the legislature cannot by law make any changes to the ballot question as written by the proponents, the Committee cannot support this Petition.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-03, House 5000, *Initiative Petition for a Law to Allow Single-Family Homes on Small Lots in Areas with Adequate Infrastructure*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Paul R. Feeney	Frank A. Moran
Barry R. Finegold	Michael S. Day
	David T. Vieira

QUESTION 8: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-10, House 5002, *Initiative Petition for a Law Relative to Regulating Marijuana*, on March 23, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5602.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-10/House 5002, *Initiative Petition for a Law Relative to Regulating Marijuana* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended

QUESTION 8: Majority Report (continued)

effect, and the legal framework it seeks to modify. The Committee also evaluated testimony and documentary evidence presented during the public hearing, along with written submissions from subject matter experts, public health professionals, industry representatives, municipal officials, law enforcement stakeholders, and members of the public. In addition, the Committee considered the potential legal, health, social, and economic implications of the proposal, including its interaction with existing statutes and regulatory structures.

After this review, a majority of the Committee raised substantial concerns regarding the structure, scope, and anticipated impacts of the Initiative Petition. The proposal seeks to modify the 2016 ballot initiative approved by the voters of the Commonwealth that legalized, regulated, and imposed taxation on the retail sale of adult-use recreational marijuana in Massachusetts. The Committee notes that this existing framework represents a comprehensive regulatory system that has been developed over time to balance public health protections, consumer access, and a legal, taxed marketplace for cannabis products.

The Petition introduces significant changes to the Commonwealth's established cannabis regulatory structure. However, the Committee finds that the proposal lacks sufficient detail regarding implementation and enforcement mechanisms, including how existing regulatory authority would be modified, transferred, or eliminated. This absence of clarity creates legal uncertainty with respect to the continued applicability of current statutes and regulations, as well as the roles of state agencies responsible for oversight of the cannabis industry.

The Committee is further concerned that the proposed changes would remove or substantially alter existing public health and safety safeguards. These include regulatory measures designed to limit youth access to cannabis products, reduce impaired driving risks, and ensure product testing, labeling, and potency standards. Testimony presented to the Committee highlighted concerns that weakening or eliminating these safeguards could increase public health risks and undermine efforts to promote responsible use within a legal market.

In addition, the Petition would have significant implications for licensing, taxation, and the overall structure of the regulated cannabis marketplace. The Committee heard evidence indicating that abrupt changes to the current system could disrupt licensed businesses operating in compliance with existing law, create uncertainty in the investment environment, and affect the stability of both large and small operators in the industry. Testimony also raised concerns with the proposal regarding substantial impacts on state and local revenue streams derived from cannabis taxation and licensing fees, which currently support a range of public programs and local initiatives, as well as the regulatory structure.

Finally, the Committee notes that the transition from a regulated and taxed adult-use market to an alternative legal framework, as contemplated by the Petition, would require extensive administrative planning, regulatory restructuring, and legislative clarification to avoid disruption to enforcement and oversight functions. The majority of the Committee therefore finds that, as drafted, the proposal does not adequately address these operational, fiscal, and public safety considerations.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-10, House 5002, *Initiative Petition for a Law Relative to Regulating Marijuana*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Paul R. Feeney	Frank A. Moran
Barry R. Finegold	Michael S. Day
	David T. Vieira

QUESTION 8: Full Text of Proposed Law

An Act to restore a sensible marijuana policy.

Be it enacted by the People, and by their authority;

SECTION 1. The Act's purpose is to modify the criteria for the legal possession, distribution, and use of marijuana by: (a) continuing the medical use of marijuana program; (b) ensuring that the simple possession of 1 ounce or less of marijuana by those 21 and over is not punishable by civil or criminal penalties, and that possession of over 1 ounce to no more than 2 ounces of marijuana is punishable only by a civil penalty; and (c) repealing Chapters 94G and 64N of the General Laws which govern the possession, use, distribution, cultivation, and taxation of marijuana not medically prescribed. To the fullest extent possible, the Act's terms are to be interpreted in accordance with the purpose and intent set forth in this section.

SECTION 2. This act may be known as "An Act to Restore A Sensible Marijuana Policy."

SECTION 3. Chapter 64N of the General Laws is hereby repealed.

SECTION 4. Chapter 94C of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out section 32L and inserting in place thereof the following section:

Section 32L Possession of marihuana; civil penalty and forfeiture; other sanctions or disqualifications prohibited

(a) Notwithstanding any other general or special law to the contrary, except as otherwise provided in this chapter, a person 21 years of age or older shall not be arrested, prosecuted, penalized, sanctioned or disqualified under the laws of the commonwealth in any manner, or denied any right or privilege and shall not be subject to seizure or forfeiture of assets for:

(1) possessing 1 ounce or less of marihuana, except that not more than 5 grams of marihuana may be in the form of marihuana concentrate; or

(2) giving away or otherwise transferring without remuneration up to 1 ounce of marihuana, except that not more than 5 grams of marihuana may be in the form of marihuana concentrate, to a person 21 years of age or older, as long as the transfer is not advertised or promoted to the public.

(b) Notwithstanding any general or special law to the contrary, possession of an amount between more than 1 ounce and 2 ounces or less of marihuana for an offender 21 years of age or older shall only be a civil offense, subjecting an offender to a civil penalty of one hundred dollars and forfeiture of the marihuana, but not to any other form of criminal or civil punishment or disqualification.

(c) Notwithstanding any general or special law to the contrary, possession of an amount of 2 ounces or less of marihuana for an offender under the age of 21 shall be subject to the same forfeiture and civil penalty provisions as subsection (b), provided he or she completes a drug awareness program which meets the criteria set forth in Section 32M of this Chapter. The parents or legal guardian of any offender under the age of eighteen shall be notified in accordance with Section 32N of this Chapter of the offense and the availability of a drug awareness program and community service option. If an offender under the age of eighteen fails within one year of the offense to complete both a drug awareness program and the required community service, the civil penalty may be increased pursuant to Section 32N of this Chapter to one thousand dollars and the offender and his or her parents shall be jointly and severally liable to pay that amount.

(d) Except as specifically provided in this chapter, section 24I of chapter 90, and chapter 387 of the acts of 2008, neither the Commonwealth nor any of its political subdivisions or their respective agencies, authorities or instrumentalities may impose any other form of penalty, sanction or disqualification on an offender for possessing 2 ounces or less of marihuana. By way of illustration rather than limitation, possession of 2 ounces or less of marihuana shall not provide a basis to deny an offender student financial aid, public housing or any form of public financial assistance including unemployment benefits, to deny the right to operate a motor vehicle or to disqualify an offender from serving as a foster parent or adoptive parent. Information concerning the offense of possession of 2 ounces or less of marihuana shall not be deemed "criminal offender record information," "evaluative information," or "intelligence information" as those terms are defined in Section 167 of Chapter 6 of the General Laws and shall not be recorded in the Criminal Offender Record Information system.

(e) As used herein, "possession of 2 ounces or less of marihuana" includes possession of 2 ounces or less of marihuana or tetrahydrocannabinol and having cannabinoids or cannabinoid metabolites in the urine, blood, saliva, sweat, hair, fingernails, toe nails or other tissue or fluid of the human body. Nothing contained herein shall be construed to repeal or modify existing laws, ordinances or bylaws, regulations, personnel practices or policies concerning the operation of motor vehicles or other actions taken while under the influence of marihuana or tetrahydrocannabinol, laws concerning the unlawful possession of prescription forms of marihuana or tetrahydrocannabinol such as

QUESTION 8: Full Text of Proposed Law (continued)

Marinol, possession of more than 2 ounces of marihuana or tetrahydrocannabinol, or selling, manufacturing or trafficking in marihuana or tetrahydrocannabinol. Nothing contained herein shall prohibit a political subdivision of the Commonwealth from enacting ordinances or bylaws regulating or prohibiting the consumption of marihuana or tetrahydrocannabinol in public places and providing for additional penalties for the public use of marihuana or tetrahydrocannabinol.

(f) The use of marihuana shall not disqualify a person from any needed medical procedure or treatment, including organ and tissue transplants.

(g) This section shall not apply to the sale, delivery or furnishing of medical use marijuana pursuant to chapter 94I.

(h) For the purposes of this section, "marihuana concentrate" means a substance derived from marihuana that is produced by extracting or concentrating cannabinoids from the plant through the use of: (i) solvents; (ii) carbon dioxide; or (iii) heat, screens, presses, or distillation.

SECTION 5. Section 32M of said chapter 94C, as so appearing, is hereby amended by striking out both of said section's references to the word "eighteen" and inserting in place thereof the following word:- 21

SECTION 6. Chapter 94G of the General Laws is hereby repealed.

SECTION 7. Chapter 94I of the General Laws is hereby amended by inserting after section 1 the following section:-

Section 1A. The Cannabis Control Commission.

(a) The commission shall have all the powers necessary or convenient to carry out and effectuate its purposes including, but not limited to, the power to:

(i) appoint officers and hire employees;

(ii) establish and amend a plan of organization that it considers expedient;

(iii) execute all instruments necessary or convenient for accomplishing the purposes of this chapter;

(iv) enter into agreements or other transactions with a person, including, but not limited to, a public entity or other governmental instrumentality or authority in connection with its powers and duties under this chapter;

(v) appear on its own behalf before boards, commissions, departments or other agencies of municipal, state or federal government;

(vi) apply for and accept subventions, grants, loans, advances and contributions of money, property, labor or other things of value from any source, to be held, used and applied for its purposes;

(vii) provide and pay for advisory services and technical assistance as may be necessary in its judgment to carry out this chapter and fix the compensation of persons providing such services or assistance;

(viii) prepare, publish and distribute, with or without charge as the commission may determine, such studies, reports, bulletins and other materials as the commission considers appropriate;

(ix) require an applicant for licensure under this chapter to apply for such licensure and approve or disapprove any such application or other transactions, events and processes as provided in this chapter;

(x) determine which applicants shall be awarded licenses;

(xi) deny an application or limit, condition, restrict, revoke or suspend a license;

(xii) establish a registration process, based on finding of suitability or approval of licensure;

(xiii) fine a person licensed, registered, found suitable or approved for licensure, for any cause that the commission deems reasonable;

(xiv) gather facts and information applicable to the commission's obligation to issue, suspend or revoke licenses, registrations, finding of suitability or approval of licensure for: (A) a violation of this chapter or any regulation adopted by the commission; (B) willfully violating an order of the commission directed to a licensee or a person required to be registered; (C) the conviction of a criminal offense; or (D) any other offense which would disqualify such a licensee from holding a license;

(xv) conduct investigations into the qualifications of all applicants for employment by the commission and all applicants for licensure;

(xvi) receive from the state police, the department of criminal justice information services or other criminal justice agencies including, but not limited to, the Federal Bureau of Investigation and the Internal Revenue Service, such criminal offender record information relating to criminal and background investigations as necessary for the purpose of evaluating licensees, applicants for license, and lab agents;

(xvii) be present, through its inspectors and agents, at any time, in any medical marijuana treatment center for the purposes of exercising its oversight responsibilities;

QUESTION 8: Full Text of Proposed Law (continued)

(xviii) inspect and have access to all equipment and supplies in a medical marijuana treatment center;

(xix) seize and remove from the premises of a medical marijuana treatment center and impound any marijuana, equipment, supplies, documents and records obtained or possessed in violation of this chapter for the purpose of examination and inspection;

(xx) for cause, demand access to and inspect all papers, books and records of close associates of a licensee whom the commission suspects is involved in the financing, operation or management of the licensee; provided, however, that the inspection, examination, photocopying and audit may take place on the affiliate's premises or elsewhere as practicable and in the presence of the affiliate or its agent;

(xxi) require that the books and financial or other records or statements of a licensee be kept in a manner that the commission considers proper;

(xxii) impose fees and fines, as authorized by this chapter and penalties and sanctions for a violation of this chapter or any regulations promulgated by the commission;

(xxiii) collect fees under this chapter;

(xxiv) conduct adjudicatory proceedings and promulgate regulations in accordance with chapter 30A;

(xxv) refer cases for criminal prosecution to the appropriate federal, state or local authorities;

(xxvi) maintain an official internet website for the commission;

(xxvii) monitor any federal activity regarding marijuana; and

(xxviii) adopt, amend or repeal regulations for the implementation, administration and enforcement of this chapter.

(b) The commission shall, in accordance with chapter 30A, adopt regulations consistent with this chapter for the administration, clarification and enforcement of laws regulating and licensing the medical use marijuana program. The regulations shall include: (i) licensure and oversight of independent testing laboratories, and establish testing protocols for the sampling, testing and analysis of marijuana, finished marijuana and medical use marijuana products in consultation with the department of public health and the department of agricultural resources.

(c) The commission shall administer the laws and regulations relating to licensing in this chapter.

(d) Each fiscal year the commission shall submit an annual finance plan to the secretary of administration and finance, and updates to such plan, in accordance with instructions issued by said secretary.

(e) The commission shall hold a public hearing before the adoption, amendment or repeal of any regulation. Adjudicatory proceedings shall be conducted pursuant to chapter 30A of the General Laws and to standard rules of adjudicatory procedure established pursuant to section 9 of chapter 30A of the General Laws.

(f) The commission shall annually submit a complete and detailed report of the commission's activities, including a review of the implementation and enforcement of this chapter and the governance structure established in this chapter, not more than 90 days after the end of the fiscal year to the governor, the attorney general, the treasurer and receiver-general, the clerks of the house of representatives and the senate, the chairs of the joint committee on cannabis policy and the chairs of the house and senate committees on ways and means.

(g) The commission and the department of public health shall work collaboratively to ensure that the production and distribution of medical use marijuana is effectively regulated in the commonwealth in furtherance of the intent of this act.

(h) The commission shall promulgate advisory guidelines and best practices on the cultivating of marijuana within a person's primary residence pursuant to section 2 of this chapter.

SECTION 8. Notwithstanding any general or special law to the contrary, the Cannabis Control Commission shall act to expedite and streamline the process for licensees under Chapter 94G, including marijuana establishments, to apply for and obtain licenses to participate in the medical use marijuana program administered pursuant to Chapter 94I and for licensees under Chapter 94G to sell existing marijuana supplies to medical marijuana treatment centers licensed pursuant to Chapter 94I.

SECTION 9. Severability

The provisions of this law are severable and if any clause, sentence, paragraph or section of this measure, or an application thereof, shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder thereof but shall be confined in its operation to the clause, sentence, paragraph, section or application adjudged invalid.

SECTION 10. Effective Date

This law shall take effect January 1, 2028.